

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 28, 2026
8:30 AM/1:30 PM

18. KATRINA NEILSEN V. MORGAN HOLLIS

24FL0907

On March 19, 2026, parties appeared for the hearing on Petitioner's Request for Order (RFO). The court adopted its tentative ruling and set the matter for trial and a review hearing. The court ordered Petitioner to participate in an Evidence Code section 730 evaluation. The court directed that supplemental declarations be filed and served at least 10 days prior to the May 28th review hearing.

Respondent filed a supplemental declaration on May 18, 2026. It was served on Petitioner on May 17, 2026. Respondent requests the current orders remain in full force and effect.

The court has not received a supplemental declaration from Petitioner, although Respondent references it in his declaration.

The court finds the current orders remain in the minor's best interest. The court notes parties are pending an evidentiary hearing on August 3, 2026, at 8:30 AM in Department 5.

All prior orders remain in full force and effect.

TENTATIVE RULING #18: ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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19. AND 20. NADIA STAMOS V. PETER STAMOS

25FL0600 AND 25FL0604

On February 24, 2026, the parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on March 25, 2026 and a review hearing on May 21, 2026.

On May 12, 2026, parties submitted a stipulation to consolidate the review hearing set for May 21st with the review hearing set for May 28th. The court signed and adopted the stipulation as its order.

Both parties appeared at CCRC and fully participated. The parties were unable to reach any agreements. A report with recommendations was filed with the court on May 7, 2026 and mailed to the parties on May 8, 2026.

Respondent filed a supplemental declaration on May 8, 2026. It was served electronically the same day. Respondent is requesting shared custody. Respondent is requesting therapy for the minors and co-parenting education for Petitioner.

The court has read and considered the May 7th CCRC report and the filings as outlined above and finds the recommendations to be in the best interests of the minors. The court adopts the recommendations as set forth in the May 7th CCRC report.

Respondent filed an ex parte application for the enforcement of the court's prior orders on March 23, 2026. Petitioner filed a responsive declaration on March 23rd. The court granted the ex parte in part and denied the ex parte in part on March 24, 2026. The court reiterated that all prior orders remained in full force and effect, including the order for Petitioner to vacate the former marital residence. The court reserved on Respondent's request for Family Code section 271 sanctions. The court likewise reserved on Petitioner's request for Family Code section 2030 attorney's fees. Respondent filed an RFO on March 24, 2026, which seeks the same orders requested in the ex parte application. Proof of Service shows Petitioner was personally served on March 25, 2026. Petitioner was also electronically served on March 24th.

There have been no additional filings related to the pending RFO. Therefore, the court presumes Petitioner has vacated the residence.

All prior orders regarding the former marital residence remain in full force and effect.

The court continues to reserve on Respondent's request for Family Code section 271 sanctions, until the time of trial.

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As to Petitioner's request for Family Code section 2030 attorney's fees, that request is denied without prejudice. Petitioner failed to file and serve an Income and Expense Declaration with her request for attorney's fees. Likewise, Petitioner did not complete the required FL-158. Therefore, Petitioner's request is denied without prejudice.

All prior orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULINGS #19 AND #20: THE COURT HAS READ AND CONSIDERED THE MAY 7TH CCRC REPORT AND FILING AS OUTLINED ABOVE AND FINDS THE RECOMMENDATIONS TO BE IN THE BEST INTERESTS OF THE MINORS. THE COURT ADOPTS THE RECOMMENDATIONS AS SET FORTH IN THE MAY 7TH CCRC REPORT.

ALL PRIOR ORDERS REGARDING THE FORMER MARITAL RESIDENCE REMAIN IN FULL FORCE AND EFFECT.

THE COURT CONTINUES TO RESERVE ON RESPONDENT'S REQUEST FOR FAMILY CODE SECTION 271, UNTIL THE TIME OF TRIAL.

AS TO PETITIONER'S REQUEST FOR FAMILY CODE SECTION 2030 ATTORNEY'S FEES, THAT REQUEST IS DENIED WITHOUT PREJUDICE FOR FAILURE TO FILE THE PROPER PAPERWORK.

ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON

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**THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE
8.05.07.**

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21. DEBRA STANLEY V. ROBERT STANLEY

PFL20210202

On March 18, 2026, Respondent filed a Request for Order (RFO) seeking visitation and spousal support orders. He filed his Income and Expense Declaration on March 17th. Both documents were served on Petitioner on March 17th however Respondent did not serve the requisite blank FL-320 or the Notice of Tentative Ruling. The Department of Child Support Services (DCSS) was not served.

Petitioner has not filed a Responsive Declaration to Request for Order.

Respondent requests a modification of the parenting time orders with a summer vacation schedule, holiday schedule and soccer season schedule. He further asks the court to terminate spousal support.

The parties attended Child Custody Recommending Counseling (CCRC) on March 5, 2026 and were unable to reach any agreements. A report with recommendations was prepared and mailed to the parties on April 17, 2026.

Given that both parties attended and participated in CCRC and given that Respondent is not making a child support request, the court does find good cause to proceed with the matter on its merits despite the defect in service.

The parties and Minors' Counsel appeared for the hearing on April 30, 2026. The parties reached agreements which included the court staying its tentative ruling as to the child custody and parenting plan issues and continued the review hearing to May 28, 2026 at 1:30 PM. All other portions of the tentative ruling were adopted as the court's orders. The court directed that any supplemental declarations were to be filed and served by no later than May 18th.

Petitioner filed a responsive declaration on May 18, 2026. The court deems this to be a supplemental declaration. Proof of Service shows both Respondent and Minors' Counsel were served on May 18th. Petitioner raises concerns about the parenting time with Respondent as well as the lack of follow through on prior orders. Additionally, Petitioner is concerned with the pick-up location for Respondent's parenting time.

Minors' Counsel filed a Statement of Issues and Contentions on May 18, 2026. Parties were served the same day.

Neither Respondent filed not filed a supplemental declaration.

The court orders parties to appear for the hearing.